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Case Number: 24PSCV01009 Hearing Date: July 7, 2026 Dept: 6

CASE

NAME: Executive

Financial Enterprises, Inc., a California Corporation, assignee of United

Parcel Service, Inc. aka UPS v. Rantion USA LLC, a California Limited Liability

Company dba Rantion

Plaintiff

Executive Financial Enterprises, Inc.'s Motion for Leave to Amend the Complaint

TENTATIVE

RULING

The Court GRANTS Plaintiff Executive Financial Enterprises, Inc.'s Motion for Leave to Amend the Complaint. Plaintiff must file and serve the proposed First Amended Complaint on all defendants who have appeared thus far within ten calendar days of this order. Plaintiff must serve the proposed First Amended Complaint on the remaining defendants in the same manner as a summons and complaint per the Code of Civil Procedure.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a business dispute. On April 2, 2024, plaintiff Executive Financial Enterprises, Inc., a California Corporation, assignee of United Parcel Service, Inc. aka UPS (Plaintiff) filed this action against defendant Rantion USA LLC, dba Rantion (erroneously sued as Rantion USA LLC, a California

Limited Liability Company dba Rantion) (Rantion), and Does 1 through 10, alleging causes of action for open book account and account stated. On August 5, 2025, Plaintiff filed a doe amendment substituting Xiao Liu in place of Doe 1. On March 10, 2026, Plaintiff filed a doe amendment substituting Jetstar Express LLC in place of Doe 2. On the same date, Plaintiff filed a doe amendment substituting Donner LLC in place of Doe 3.

On May 27, 2026, Plaintiff moved for leave to amend the Complaint. The motion is unopposed.

LEGAL STANDARD

Code of Civil

Procedure section 473, subdivision (a)(1) provides, in relevant part: "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." (Code Civ. Proc., § 473, subd. (a)(1).) This discretion should be exercised liberally in favor of amendments, for judicial policy favors resolution of all disputed matters in the same lawsuit." (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1047.)

Under Rule

3.1324, subdivision (a) of the California Rules of Court, a motion to amend a pleading shall (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Court, rule 3.1324, subd. (a).)

Under Rule 3.1324, subdivision (b) of the California Rules of Court, a separate declaration must accompany the motion and must specify (1)

the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324, subd. (b).)

DISCUSSION

Plaintiff

seeks leave to amend the Complaint to expand the causes of action, add factual allegations regarding the parties' course of dealing and written agreements, and to further plead assignment, standing, and related business relationships tied to the dispute. Plaintiff contends the proposed amendment is based on the same core facts already at issue in this action. Plaintiff indicates that current counsel, after substituting into the case in February 2026, reviewed the case file and identified additional facts and legal theories bearing on the same dispute. Plaintiff indicates that the proposed amendments include up to eight causes of action and names five additional defendants. Plaintiff contends these additional causes of action arise from the same operative facts and that these additional defendants are properly added because they are involved in the manufacture, marketing, distribution, and sale of consumer goods under the Donner brand name, and they are related to Rantion.

Plaintiff

contends Defendant will not suffer undue prejudice from the proposed amendment. Plaintiff contends there is still approximately eight to nine months before trial, providing the defendants with substantial time to conduct discovery on the new claims and new defendants and to prepare a defense. Plaintiff contends the proposed amendment does not require the defendants to conduct entirely new discovery since the claims arise from the same operative facts of which defendants have been on notice. Plaintiff further contends the proposed amendments are not futile.

The Court finds Plaintiff has

sufficiently complied with the requirements for obtaining leave to amend. Policy favors liberally granting leave to amend. (Kittredge Sports Co. v. Superior Court, *supra*, 213 Cal.App.3d at p. 1047.) Plaintiff provided a copy of the proposed First Amended Complaint. (Greenbaum Decl., Ex. A; Cal. Rules of Court, rule 3.1324, subd. (a).) Plaintiff provided a declaration indicating the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations

were discovered, and the reasons why the request for amendment was not made earlier. (Greenbaum Decl., ¶¶ 6-25.) Trial is also approximately eight months away, which should allow the parties sufficient time to conduct discovery and prepare for trial. (See *Magpali v. Farmers Grp., Inc.* (1996) 48 Cal.App.4th 471, 488.)

Based on the foregoing, the Court GRANTS the motion.

CONCLUSION

The Court GRANTS Plaintiff Executive Financial Enterprises, Inc.'s Motion for Leave to Amend the Complaint. Plaintiff must file and serve the proposed First Amended Complaint on all defendants who have appeared thus far within ten calendar days of this order. Plaintiff must serve the proposed First Amended Complaint on the remaining defendants in the same manner as a summons and complaint per the Code of Civil Procedure.

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